

FEDERAL MARITIME COMMISSION

DOCKET NO. 17-02

HANGZHOU QIANWANG DRESS CO., LTD.

v.

RDD FREIGHT INTERNATIONAL INC.

ORDER PERMITTING MOTION TO COMPEL

The parties appeared for a telephone conference on March 21, 2018. Complainant appeared through its owner and general manager Xingliang Qian. Respondent appeared through its attorney Ren Rong Pan. No audio recording was made.

The parties do not agree on when and whether Complainant sent Complainant's Objections and Responses to Respondent's First Set of Interrogatories, and to Respondent's First Request for Production of Documents to Respondent. The only certificate of service filed by Complainant states February 22, 2018. Respondent states it did not receive the responses until the Office of Administrative Law Judges sent it an electronic copy on March 15, 2018. Respondent contends that the responses are inadequate. Respondent is granted leave to file a motion to compel responses on or before April 11, 2018. Complainant may file a response to the motion on or before April 25, 2018.

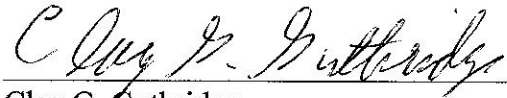
The attention of the parties is directed to Paragraph 11 of the Initial Order setting forth the requirements for a motion to compel.

A motion to compel must set forth verbatim the interrogatory or request, the response that the moving party argues is insufficient, a summary of the moving party's attempts to secure a sufficient response, and the moving party's argument on why the response is insufficient. *The moving party must provide an electronic copy in a word processing format of the motion to compel with the hard copy of the motion.*

The non-moving party must use the electronic copy of the motion to compel and add any counter-summary of the attempts to secure a sufficient response, then its argument on why the response is sufficient, below the moving party's summary and argument for each response claimed to be insufficient. *The non-moving party must provide to the moving party and to the Presiding Officer an electronic copy in a word processing format of the motion to compel to which it has added its counter-summaries and arguments.*

Hangzhou Qianwang Dress Co., Ltd. v. RDD Freight International Inc., FMC No. 17-02 (ALJ Mar. 3, 2017) (Initial Order) (emphasis added). The provision of the electronic copy is in addition to the hard copy served on the opposing party and filed with the Secretary. The parties are admonished to follow this requirement.

The undersigned will schedule another telephone conference with the parties after the motion to compel and the response have been filed.


Clay G. Guthridge
Administrative Law Judge